

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
RASHAAD NORFLEET,

Plaintiff,

- against -

THE CITY OF NEW YORK,
THE CITY OF NEW YORK POLICE DEPARTMENT,
STEPHEN CONTRATA, individually and in his
official capacity as a CITY OF NEW YORK
POLICE OFFICER, "JOHN" KIM (first name being
unknown and fictitious), individually and in his official
capacity as a CITY OF NEW YORK POLICE OFFICER
and SERGEANT JEAN BAPTISTE, individually and in
his official capacity as a CITY OF NEW YORK
POLICE SERGEANT,Defendants.
-----X

Index No.:

Date purchased:

Plaintiff designates
BRONX COUNTY
As the place of trial.The basis of venue is
Defendants' residence
and place of occurrence**SUMMONS**Plaintiff resides at
134 South 8th Ave
Mount Vernon, NY 10550
County of Westchester**To The Above Named Defendants**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with the summons, to serve a notice of appearance, on the Plaintiff's Attorneys within twenty (20) days after the service of this summons, exclusive of the date of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
December 22, 2017

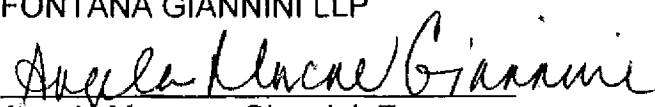
TO: Defendants

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

(See Annexed Rider)

FONTANA GIANNINI LLP

By:


Angela Morcone Giannini, Esq.
Attorneys for Plaintiff
RASHAAD NORFLEET
140 Grand Street
White Plains, New York 10601
(914) 428-9700

RIDER TO SUMMONS

THE CITY OF NEW YORK
POLICE DEPARTMENT
1 Police Plaza
New York, New York 10038

POLICE OFFICER STEPHEN CONTRATA
900 Fteley Avenue
Bronx, New York 10473

POLICE OFFICER, "JOHN" KIM
(first name being unknown and fictitious)
900 Fteley Avenue
Bronx, New York 10473

SERGEANT JEAN BAPTISTE
900 Fteley Avenue
Bronx, New York 10473

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
RASHAAD NORFLEET,

Index No.:

Plaintiff,

- against -

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK,
THE CITY OF NEW YORK POLICE DEPARTMENT,
STEPHEN CONTRATA, individually and in his
official capacity as a CITY OF NEW YORK
POLICE OFFICER, "JOHN" KIM (first name being
unknown and fictitious), individually and in his official
capacity as a CITY OF NEW YORK POLICE OFFICER
and SERGEANT JEAN BAPTISTE, individually and in
his official capacity as a CITY OF NEW YORK
POLICE SERGEANT,

Defendants,
-----X

Plaintiff, RASHAAD NORFLEET, by his attorneys, FONTANA GIANNINI LLP,
complaining of the Defendants, THE CITY OF NEW YORK (hereinafter, the "CITY"),
THE CITY OF NEW YORK POLICE DEPARTMENT (hereinafter, the "POLICE
DEPARTMENT"), CITY OF NEW YORK POLICE OFFICERS, STEPHEN CONTRATA,
individually and in his official capacity as a City of New York Police Officer (hereinafter,
"CONTRATA"), OFFICER "JOHN" KIM (first name unknown and fictitious), individually
and in his official capacity as a New York City Police Officer (hereinafter "KIM"), and
SERGEANT JEAN BAPTISTE, individually and as a CITY OF NEW YORK POLICE
SERGEANT (hereinafter "JEAN BAPTISTE").

PRELIMINARY STATEMENT

FIRST: This is an action for money damages brought pursuant to 42 U.S.C. §§ 1983, 1985 and 1988, and the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and under the common law of the State of New York for plaintiff's causes of action for false arrest, unlawful/false imprisonment, malicious prosecution, civil rights violations, assault and battery, and negligence.

SECOND: It is alleged that the Defendants committed general negligence, negligent supervision, negligent hiring, negligent retention, false arrest, unlawful/false imprisonment, malicious prosecution, civil rights violations, and assault and battery on the person of the Plaintiff, violating his rights under the Fourth, Fifth and Fourteenth Amendments of the United States Constitution. It is further alleged that these violations and torts were committed as a result of policies and customs of the CITY and the POLICE DEPARTMENT.

THIRD: Within ninety (90) days after the claim herein arose, a Notice of Claim was served upon the Defendant, CITY, and at least thirty (30) days have elapsed since the service of the aforesaid Notice of Claim, and adjustment or payment thereof has been neglected or refused.

FOURTH: On or about March 31, 2017, the plaintiff herein complied with Defendant CITY's Notice of Hearing and appeared with counsel for a 50-h hearing conducted by the CITY.

FIFTH: This action is being commenced within one year and 90 days after the happening of the events upon which the claim is based.

SIXTH: Defendant CONTRATA was at all times relevant to this complaint a duly appointed and acting officer of the POLICE DEPARTMENT, acting under color of law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the State of New York, the City of New York and/or the City of New York Police Department.

SEVENTH: Defendant KIM was at all times relevant to this complaint a duly appointed and acting officer of the POLICE DEPARTMENT, acting under color of law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the State of New York, the City of New York and/or the City of New York Police Department.

EIGHTH: Defendant JEAN BAPTISTE was at all times relevant to this Complaint a duly appointed and acting officer and Sergeant of the POLICE DEPARTMENT, acting under color of law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the State of New York, the City of New York and/or the City of New York Police Department.

NINTH: At all times hereinafter mentioned, said police officers CONTRATA and KIM and Sergeant JEAN BAPTISTE were assigned to the 43rd Precinct, Bronx, New York.

TENTH: Defendant, CITY, is a municipal corporation organized and existing under the laws of the State of New York and transacting business therein and the public employer of Defendants, CONTRATA, KIM and JEAN BAPTISTE .

ELEVENTH: Plaintiff, RASHAAD NORFLEET, was at all times a resident of the City of Mt. Vernon, County of Westchester, State of New York.

TWELFTH: This Court has personal jurisdiction over the Defendant, CITY, because it is a municipal corporation organized and existing under the laws of the State of New York, and transacting business therein.

THIRTEENTH: This Court has personal jurisdiction over Defendants, CONTRATA, KIM and JEAN BAPTISTE as Police Officers/Sergeant employed by the CITY.

FOURTEENTH: This Court has subject matter jurisdiction over this action by virtue of its status as a Court of general jurisdiction.

FIFTEENTH: Venue is proper before this Court because the events giving rise to this action took place in Bronx, New York.

FACTS

SIXTEENTH: On or about October 26, 2016, at approximately 4:30 pm Plaintiff, RASHAAD NORFLEET, was walking near 1056 Manor Avenue, Bronx, New York.

SEVENTEENTH: On or about October 26, 2016, at approximately 4:30 pm in the City of New York, Defendants, CONTRATA and KIM approached Plaintiff, RASHAAD NORFLEET, in the vicinity of 1056 Manor Avenue, Bronx, New York.

EIGHTEENTH: On or about October 26, 2016, at approximately 4:30 pm, Defendants, CONTRATA and KIM, were working in their capacity as New York City Police Officers.

NINETEENTH: On or about October 26, 2016, at approximately 4:30 pm, Defendants, CONTRATA and KIM suspected Plaintiff, RASHAAD NORFLEET, of committing a crime that took place earlier that day.

TWENTIETH: On or about October 26, 2016, at approximately 4:30 pm, Plaintiff, RASHAAD NORFLEET, told Defendants, CONTRATA and KIM that he was a school teacher employed by the City of New York at the Eagle Academy in Brooklyn.

TWENTY-FIRST: On or about October 26, 2016, at approximately 4:30 pm, Defendants, CONTRATA and KIM unlawfully searched Plaintiff's person and seized Plaintiff RASHAAD NORFLEET's bookbag.

TWENTY-SECOND: On or about October 26, 2016 at approximately 4:30 pm, Plaintiff RASHAAD NORFLEET further advised and informed Defendants CONTRATA and KIM that he was working at the Eagle Academy in Brooklyn that day at the time of the alleged incident.

TWENTY-THIRD: On or about October 26, 2016, Defendants CONTRATA and KIM stated that "there was no way he [Plaintiff] could be a school teacher."

TWENTY-FOURTH: On or about October 26, 2016, at approximately 4:30 pm, Plaintiff, RASHAAD NORFLEET told the Defendants, CONTRATA and KIM his bookbag contained scholar papers from the Eagle Academy and encouraged Defendants CONTRATA and KIM to call the principal at his school to verify that he was a teacher and was working that day at the Eagle Academy at the time of the alleged incident.

TWENTY-FIFTH: On or about October 26, 2016, at approximately 4:30 pm, despite rummaging through Plaintiff's bookbag, Defendants failed to appreciate and recognize the Eagle Academy scholar papers in Plaintiff's bookbag identifying plaintiff's employment and affiliation with the Eagle Academy in Brooklyn.

TWENTY-SIXTH: On or about October 26, 2016, at approximately 4:30 pm, Defendants, CONTRATA and KIM, failed to make any attempts or efforts to corroborate the information provided by the Plaintiff, RASHAAD NORFLEET about his employer and whereabouts at the time of the alleged incident.

TWENTY-SEVENTH: On or about October 26, 2016, at approximately 4:30 pm, Defendants, CONTRATA and KIM used excessive force on and against Plaintiff, RASHAAD NORFLEET, by slamming Plaintiff, RASHAAD NORFLEET, against a police motor vehicle.

TWENTY-EIGHTH: On or about October 26, 2016, at approximately 4:30 pm, Defendants, CONTRATA and KIM used excessive force against Plaintiff, RASHAAD NORFLEET, by drawing a gun on Plaintiff, RASHAAD NORFLEET.

TWENTY-NINTH: Plaintiff, RASHAAD NORFLEET, had neither physically resisted nor assaulted the Defendants, CONTRATA, KIM and/or JEAN BAPTISTE in any way, and the force used against him was unnecessary, unreasonable and excessive.

THIRTIETH: At no time during the events described above, was Plaintiff, RASHAAD NORFLEET, intoxicated, incapacitated, or a threat to the safety of himself, or to others.

THIRTY-FIRST: On or about October 26, 2016, sometime thereafter, Defendant JEAN BAPTISTE arrived at the scene/location on Manor Avenue.

THIRTY-SECOND: At all times hereinafter mentioned, Defendant JEAN BAPTISTE was the supervising officer and Sergeant to whom Police Officers CONTRATA and KIM reported.

THIRTY-THIRD: At all times hereinafter mentioned, Defendant JEAN BAPTISTE made no efforts to investigate or corroborate the information provided by the Plaintiff, RASHAAD NORFLEET, including but not limited to his whereabouts that day and the documentation identifying his employer readily available in his belongings.

THIRTY-FOURTH: On or about October 26, 2016, at approximately 4:30 pm, said Defendants conferred at said scene working in unison and brought Plaintiff, RASHAAD NORFLEET to the 43rd precinct.

THIRTY-FIFTH: Despite evidence to the contrary, Defendant JEAN BAPTISTE supervised, directed and oversaw the arrest of the Plaintiff, RASHAAD NORFLEET and directed Police Officers, CONTRATA and KIM to bring Plaintiff, RASHAAD NORFLEET to the 43rd precinct.

THIRTY-SIXTH: On or about October 26, 2016, at approximately 4:30 pm, Defendants, CONTRATA and KIM arrested Plaintiff, RASHAAD NORFLEET, in their capacities as New York City Police Officers.

THIRTY-SEVENTH: On or about October 26, 2016, at approximately 4:30, Plaintiff RASHAAD NORFLEET was forcibly removed from his lawful pursuit and transported by Defendants, CONTRATA and KIM, to the 43rd Police Precinct located at 900 Fteley Avenue, Bronx, New York 10473.

THIRTY-EIGHTH: On or about October 26, 2016, upon arriving at the Precinct, the Defendants handcuffed Plaintiff, RASHAAD NORFLEET, to a radiator in the 43rd Police Precinct.

THIRTY-NINTH: Because of the aforesaid arrest, Plaintiff, RASHAAD NORFLEET, spent approximately 30 hours in jail.

FORTIETH: At all times hereinafter mentioned Plaintiff RASHAAD NORFLEET cooperated with Defendants, CITY, POLICE DEPARTMENT, CONTRATA, KIM and JEAN BAPTISTE and provided information to said Defendants about his employment and whereabouts that day.

FORTY-FIRST: At all times during the events described above, the Defendants, CONTRATA, KIM and JEAN BAPTISTE, were employees/agents of the CITY, and the POLICE DEPARTMENT and were engaged in a joint venture with said entities. The individual officers assisted the CITY and the POLICE DEPARTMENT in performing the various actions described.

FORTY-SECOND: At all times herein mentioned, the Plaintiff RASHAAD NORFLEET was wrongfully charged with the felonies of Attempted Robbery in the Second Degree, Attempted Robbery in the Third Degree, Attempted Grand Larceny in the Fourth Degree, and Assault in the Third Degree, Attempted Petit Larceny and Harassment in the Second Degree under docket number 2016BX047017.

FORTY-THIRD: At all times herein mentioned, RASHAAD NORFLEET was maliciously prosecuted for the above charges until November 7, 2016, when the matter was dismissed by motion of the District Attorney's Office (Certificate of Disposition Number 163722).

FORTY-FOURTH: As a direct and proximate result of the wrongful acts of the Defendants, the Plaintiff, RASHAAD NORFLEET, suffered physical, mental, and emotional damages including but not limited to emotional distress, duress, great and imminent fear of serious physical injury and death, great humiliation, immediate and ongoing anxiety, sleep deprivation and post traumatic stress disorder.

FORTY-FIFTH: As a direct and proximate result of the acts of the Defendants, the Plaintiff RASHAAD NORFLEET suffered loss of salary, benefits and reputation and standing that cannot be fully dispelled, was deprived of the opportunity to pursue his planned educational courses as scheduled and required to obtain legal counsel at a cost of \$10,000 for representation in the criminal prosecution.

FORTY-SIXTH: As a direct and proximate result of the actions of the Defendants, Plaintiff, RASHAAD NORFLEET'S, constitutional rights under the Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution were violated. Specifically, the following clearly established and well-settled federal constitutional rights of the plaintiff were violated including: Freedom from the unreasonable seizure of his person; Freedom from the use of excessive, unreasonable, and unjustified force against his person; Freedom from conspiracies to deprive him of his civil rights; Freedom from cruel and unusual punishment; Right of due process; Equal protection under the law; Malicious Prosecution.

FORTY-SEVENTH: On or about October 26, 2016, Defendants were negligent, grossly negligent and acted with wanton and reckless disregard for the safety and well-being of Plaintiff, RASHAAD NORFLEET.

**AS AND FOR A
FIRST CAUSE OF ACTION
IN NEGLIGENCE**

FORTY-EIGHTH: That the Plaintiff RASHAAD NORFLEET repeats, reiterates and re-alleges each and every allegation contained in paragraphs 1- 47 of this complaint with the same force and effect as if fully set forth herein.

FORTY-NINTH: That all of the aforementioned acts committed by the police officers, servants, and/or other employees of the Defendants, CITY and POLICE DEPARTMENT were committed due to the recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the Defendants.

FIFTIETH: That the Defendants, CITY and POLICE DEPARTMENT were negligent, reckless and careless in the negligent hiring, negligent retention and negligent training of said police officers, agents, servants and/or employees.

FIFTY-FIRST: That all of the aforementioned acts, committed by the police officers, servants, and/or other employees of the Defendants including police officers CONTRATA and KIM and Sergeant JEAN BAPTISTE were negligent, reckless and careless.

FIFTY-SECOND: That all of the aforementioned acts, committed by the police officers, servants, and/or other employees of the Defendants caused the negligent infliction of emotional distress upon the Plaintiff RASHAAD NORFLEET.

FIFTY-THIRD: That all of the aforementioned acts, committed by the police officers, servants, and/or other employees of the Defendants were also an abuse of

power and rose to the level of intentional infliction of emotional distress upon the Plaintiff RASHAAD NORFLEET.

FIFTY-FOURTH: Defendants were negligent, grossly negligent and acted with wanton and reckless disregard for the safety and well-being of Plaintiff, RASHAAD NORFLEET.

FIFTY-FIFTH: That by reason of the foregoing, the Plaintiff RASHAAD NORFLEET was injured and rendered sick and emotionally disabled and was caused to undergo medical treatment and therapy and was unable to pursue his usual and regular activities and that these injuries are continuing and permanent in nature.

FIFTY-SIXTH: That this action falls within one or more of the exceptions set forth in CPLR §1602 including but not limited to having acted in reckless disregard for the safety of others.

FIFTY-SEVENTH: That, by reason of the foregoing, the Plaintiff, RASHAAD NORFLEET, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts which would otherwise have jurisdiction.

**AS AND FOR A
SECOND CAUSE OF ACTION
42 U.S.C. § 1983
4th and 14th Amendments**

FIFTY-EIGHTH: The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs 1-57 of this complaint with the same force and effect as if fully set forth herein.

FIFTY-NINTH: Plaintiff, RASHAAD NORFLEET, claims damages for the injuries set forth above under 42 U.S.C. 1983 against Defendants, for violation of his constitutional rights under color of law including the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

SIXTIETH: That, by reason of the foregoing, the Plaintiff, RASHAAD NORFLEET, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts which would otherwise have jurisdiction.

**AS AND FOR A
THIRD CAUSE OF ACTION
42 U.S.C. § 1985**

SIXTY-FIRST: The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs 1-57 of this complaint with the same force and effect as if fully set forth herein.

SIXTY-SECOND: Plaintiff, RASHAAD NORFLEET, claims damages for the injuries set forth above under 42 U.S.C. § 1985 against Defendants for conspiring to violate his constitutional rights under color of law.

SIXTY-THIRD: That, by reason of the foregoing, the Plaintiff, RASHAAD NORFLEET, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts which would otherwise have jurisdiction.

**AS AND FOR A
FOURTH CAUSE OF ACTION
ASSAULT & BATTERY**

SIXTY-FOURTH: The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs 1-57 of this complaint with the same force and effect as if fully set forth herein.

SIXTY-FIFTH: Defendant Police Officers CONTRATA and KIM caused Plaintiff RASHAAD NORFLEET to be assaulted and battered.

SIXTY-SIXTH: As a result of said assault and battery, Plaintiff RASHAAD NORFLEET was forced to endure conscious physical and emotional pain and suffering.

SIXTY-SEVENTH: That, by reason of the foregoing, the Plaintiff, RASHAAD NORFLEET, has sustained damages in an amount for each claim in excess of the jurisdictional limits of all the lower Courts which would otherwise have jurisdiction.

**AS AND FOR A
FIFTH CAUSE OF ACTION
False Arrest**

SIXTY-EIGHTH: The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs 1-57 of this complaint with the same force and effect as if fully set forth herein.

SIXTY-NINTH: Defendants' concerted actions, under color of law, caused plaintiff to be falsely arrested in violation of his civil rights under the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, 42 U.S.C. § 1983 and the Laws of the State of New York.

SEVENTIETH: As a result of the above, Plaintiff, RASHAAD NORFLEET, suffered damages to his reputation, incurred legal fees, suffered mental and emotional trauma, lost his enjoyment of life and was deprived of his civil rights and personal liberty as protected by the United States Constitution and applicable Federal and New York State Statutes.

SEVENTY-FIRST: As a direct and proximate result of the foregoing actions, said Defendants deprived Plaintiff of rights, privileges and immunities secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution in violation of 42 U.S.C. §1983.

SEVENTY-SECOND: That, by reason of the foregoing, the Plaintiff, RASHAAD NORFLEET, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts which would otherwise have jurisdiction.

**AS AND FOR A
SIXTH CAUSE OF ACTION
False Imprisonment**

SEVENTY-THIRD: The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs 1-57 of this complaint with the same force and effect as if fully set forth herein.

SEVENTY-FOURTH: Defendants' concerted actions, under color of law, caused plaintiff to be falsely imprisoned in violation of his civil rights under the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, 42 U.S.C. § 1983 and the Laws of the State of New York.

SEVENTY-FIFTH: As a result of the above, Plaintiff, RASHAAD NORFLEET, suffered damages to his reputation, incurred legal fees, suffered mental and emotional trauma, lost his enjoyment of life and was deprived of his civil rights and personal liberty as protected by the United States Constitution and applicable Federal Statutes.

SEVENTY-SIXTH: As a direct and proximate result of the foregoing actions, said Defendants deprived Plaintiff of rights, privileges and immunities secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution in violation of 42 U.S.C. §1983.

SEVENTY-SEVENTH: That, by reason of the foregoing, the Plaintiff, RASHAAD NORFLEET, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts which would otherwise have jurisdiction.

**AS AND FOR A
SEVENTH CAUSE OF ACTION
Malicious Prosecution**

SEVENTY-EIGHTH: The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs 1-57 of this complaint with the same force and effect as if fully set forth herein.

SEVENTY-NINTH: Defendants' concerted actions, under color of law, caused plaintiff to be maliciously prosecuted in violation of his civil rights under the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, 42 U.S.C. § 1983 and the Laws of the State of New York.

EIGHTIETH: As a result of all of the above, Plaintiff, RASHAAD NORFLEET, suffered damages to his reputation, incurred legal fees, suffered mental and emotional

trauma, lost his enjoyment of life and was deprived of his civil rights and personal liberty as protected by the United States Constitution and applicable Federal Statutes.

EIGHTY-FIRST: As a direct and proximate result of the foregoing actions, said Defendants deprived Plaintiff of rights, privileges and immunities secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution in violation of 42 U.S.C. § 1983.

EIGHTY-SECOND: That, by reason of the foregoing, the Plaintiff, RASHAAD NORFLEET, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts which would otherwise have jurisdiction.

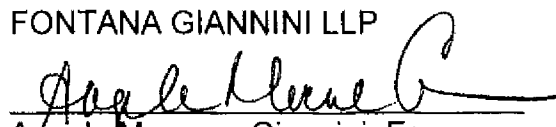
WHEREFORE, plaintiffs seek compensatory and punitive damages against the defendants on the FIRST, SECOND, THIRD, FOURTH, FIFTH, SIXTH and SEVENTH Causes of Action in amounts which exceed the jurisdictional limits of all lower courts that would otherwise have jurisdiction, reasonable attorney fees and for such further relief as this court deems just and proper, together with the costs and disbursements of this action.

Dated: White Plains, New York
December 22, 2017

Yours, etc.,

FONTANA GIANNINI LLP

By:

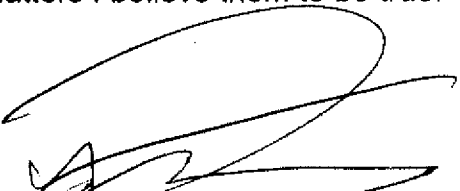

Angela Morcone Giannini, Esq.
Attorneys for Plaintiff
RASHAAD NORFLEET
140 Grand Street
White Plains, New York 10601
(914) 428-9700

VERIFICATION

STATE OF NEW YORK)
COUNTY OF WESTCHESTER) SS.:

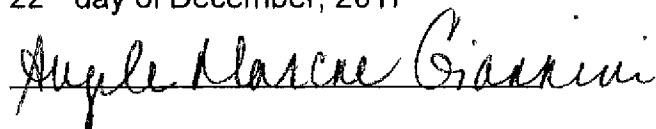
RASHAAD NORFLEET, being duly sworn says: I am plaintiff in the action herein; I have read the annexed COMPLAINT, know the contents thereof and the same are true to my knowledge, except those matters therein which are stated to be alleged on information and belief, and as to those matters I believe them to be true.

Dated: December 22, 2017



RASHAAD NORFLEET

Sworn to before me this
22nd day of December, 2017



ANGELA MORCONE GIANNINI
Notary Public, State of New York
No. 02GI5084861
Qualified in Westchester County
Commission Expires September 8, 2021